

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

WAY2GO CARGO CORP.,

DOCKET NO.: 25-14

Complainant,

v.

OAK WAY CARGO, LLC,

Respondent.

**RESPONDENT OAK WAY CARGO, LLC'S ANSWER AND AFFIRMATIVE
DEFENSES TO COMPLAINANT WAY2GO CARGO CORP.'S COMPLAINT**

Respondent Oak Way Cargo, LLC ("Oak Way" or "Respondent") files its Answer and Affirmative Defenses to Complainant Way2Go Cargo, Corp.'s ("Way2Go" or "Complainant") Complaint, dated July 25th, 2025, and in support thereof, states as follows:

PARTIES

1. Admit that Way2Go's principal place of business was previously located at 563 N Cleary Rd, 2, West Palm Beach, FL 33413, and that it has previously used the license number 027779. Denied that it has any active business, let alone a "principal place of business." Respondent is otherwise without sufficient knowledge to admit or deny the allegations contained in paragraph 1 and therefore denies.

2. Admit that Oak Way is a Florida limited liability company with its principal place of business located at 847 NW 119 Street, Suite 205, Miami, Florida 33168. Respondent otherwise denies the allegations contained in paragraph 2.

JURISDICTION

3. Admit that the Complaint speaks for itself. Otherwise denied.



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FACTS

4. Respondent admits Way2Go has previously used the OTI license number 027779, that there is a document attached to the Complaint, which speaks for itself. Respondent is otherwise without sufficient knowledge to admit or deny the allegations contained in paragraph 4 and therefore denies.

5. Respondent denies the allegations contained in paragraph 5.

6. Respondent admits the allegations contained in paragraph 6.

7. Respondent denies the allegations contained in paragraph 7.

8. Respondent denies the allegations contained in paragraph 8.

9. Respondent denies the allegations contained in paragraph 9.

10. Respondent denies the allegations contained in paragraph 10.

11. Respondent denies the allegations contained in paragraph 11 as the ownership of Way2Go and identities of individuals who could give “consent” on behalf of Way2Go is currently subject to litigation in the Florida state court actions.

12. Respondent admits there is a document attached to the Complaint, which speaks for itself. Respondent otherwise denies the allegations contained in paragraph 12.

13. Respondent admits there is a document attached to the Complaint, which speaks for itself. Respondent admits that it submitted an application for a FMC license. Respondent otherwise denies the allegations contained in paragraph 13.

14. Respondent admits there is a document attached to the Complaint, which speaks for itself. Respondent is otherwise without sufficient knowledge to admit or deny the allegations contained in paragraph 14 and therefore denies.

15. Respondent denies the allegations contained in paragraph 15.

- 16. Respondent denies the allegations contained in paragraph 16.
- 17. Respondent denies the allegations contained in paragraph 17.
- 18. Respondent denies the allegations contained in paragraph 18.
- 19. Respondent admits there is a document attached to the Complaint, which speaks for itself. Respondent is otherwise without sufficient knowledge to admit or deny the allegations contained in paragraph 19.
- 20. Respondent denies the allegations contained in paragraph 20.
- 21. Respondent denies the allegations contained in paragraph 21.

COUNT I

- 22. Respondent denies the allegations contained in paragraph 22.
 - a. Respondent denies the allegations contained in paragraph 22.a.
 - b. Respondent denies the allegations contained in paragraph 22.b.
 - c. Respondent denies the allegations contained in paragraph 22.c.
 - d. Respondent denies the allegations contained in paragraph 22.d.
 - e. Respondent denies the allegations contained in paragraph 22.e.
 - f. Respondent denies the allegations contained in paragraph 22.f.
 - g. Respondent denies the allegations contained in paragraph 22.g.
- 23. Respondent denies the allegations contained in paragraph 23.

AFFIRMATIVE DEFENSES

First Affirmative Defense *Unclean Hands*

Complainant's claims are barred by the doctrine of unclean hands. Way2Go is no longer a going concern, as its principal, Ernani Ferraz, ran the company into the ground through mismanagement, diversion of assets, and abandonment of operations. Ferraz now seeks to benefit



from his own misconduct by pursuing claims in the name of a defunct company. Ferraz commits a fraud on this Commission by attempting to obtain “damages” for a non-operational company when he himself has caused the company’s demise and any purported damages. This action is also part of a vexatious campaign of harassment by Ferraz to destroy Oak Way, as further evidenced by his attempts to have Oak Way’s principals barred from entering the US and from trying to prevent it from having its FMC license granted.

Second Affirmative Defense
Estoppel

Complainant is estopped from pursuing the asserted claims because of its prior representations, conduct, and omissions, including its failure to disclose material facts regarding the ownership transfer agreement between Ernani Ferraz and Diego Santana, the pending state court actions, and Way2Go’s current non-operational status. Further, Way2Go is estopped from bringing these claims because it failed to bring them in the Florida state court actions where they would have been mandatory counterclaims.

Third Affirmative Defense
Waiver

Complainant waived any right to relief by entering into a contract to sell the company to Mr. Santana and then causing Way2Go to cease operations under Ferraz’s direction. Having run the company into the ground and failed to protect its interests, Ferraz cannot now use a non-operating entity as a vehicle to pursue a Shipping Act claim. By abandoning Way2Go’s business, Complainant waived any right to claim ongoing damages. Further, Way2Go waived these claims by failing to bring them in the Florida state court actions where they would have been mandatory counterclaims.



Fourth Affirmative Defense
Claim Splitting

Complainant's claims are barred by the doctrine against claim splitting. The disputes over ownership, control, and alleged diversion of assets are already the subject of multiple pending Florida lawsuits between the same individuals. Ferraz cannot now repackage those state-law claims into a Shipping Act complaint.

Fifth Affirmative Defense
Against Public Policy

The relief Complainant seeks is contrary to public policy. Ferraz, acting through a company that no longer operates, is attempting to use the Commission as a forum to press private corporate disputes and harass former business partners. Expanding the Commission's jurisdiction to cover such shareholder and fiduciary disputes (especially where the company itself is defunct) would undermine the statutory limits on the Commission's authority and enable forum shopping and abuse.

Sixth Affirmative Defense
Prior Litigation

Complainant's claims are barred by the pendency of prior litigation in Florida state court. Those lawsuits were filed months before this action and arise out of the same nucleolus of operative facts relating to ownership and control of the relevant entities.

Seventh Affirmative Defense
Intervening Cause

Any alleged damages suffered by Complainant were not caused by Oak Way but by Ferraz's own mismanagement and his deliberate destruction of Way2Go's operations. Way2Go no longer exists as a functioning business, and any claimed harm flows directly from Ferraz's actions—not from the alleged licensing violation.



Eight Affirmative Defense
Violation of the Seventh Amendment

The type of damages that Complainant seeks is barred by the Seventh Amendment, which provides that “[i]n Suits at common law, where the value in controversy shall exceed twenty dollars, the right of trial by jury shall be preserved[.]” U.S. Const. amend. VII. The damages claimed (lost profits, alleged diversion of funds, and interference with business relationships) arise out of common-law claims sounding in tort and contract. Such claims are private rights that must be tried to a jury. To provide such relief in this forum would violate Oak Way’s constitutional rights.

Ninth Affirmative Defense
Lack of Jurisdiction

The Commission is a tribunal of limited jurisdiction. Its authority extends to adjudicating violations of the Shipping Act and to awarding cease-and-desist relief or reparations proximately caused by such violations. Here, Complainant seeks relief for matters that fall outside the Commission’s jurisdiction, including alleged fraud, conversion, breach of fiduciary duty, and interference with business relationships. Those claims are common law causes of action that exceeds the Commission’s jurisdiction.

Tenth Affirmative Defense
Lack of Standing

Ferraz purports to own and control Way2Go and brings this litigation on its behalf. However, Ferraz already entered into a contract with Mr. Santana to sell him the company, and Ferraz’ failure to perform under that contract and the ownership of Way2Go is subject to ongoing and previously filed litigation in Florida.



Eleventh Affirmative Defense
Failure to Mitigate

Way2Go has not taken any action to mitigate the supposed damages caused by Oak Way. It has taken no action to ensure that the packages that were shipped under its license were timely released from the port and delivered to customers. Nor has it taken any action to pay any of the supposedly outstanding shipping charges for its clients. It also has failed to maintain its credentials to the ShipThis platform.

Twelfth Affirmative Defense
Speculative Damages

The supposed damages that Way2Go seeks in the Complaint are speculative and not tied to any concrete injury.

Thirteenth Affirmative Defense
Setoff

Any recovery to Ferraz by way of Way2Go needs to be offset by the funds that Ferraz previously stole from Way2Go. As alleged in the state actions, Ferraz stole more than \$218,000.00 from that company.

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Respectfully submitted,

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was filed via e-mail upon the Office of the Secretary at secretary@fmc.gov and served upon all counsel of record for Way2Go Cargo Corp., at sarah@epgdlaw.com and jennifer@epgdlaw.com on this 29th day of September, 2025.

By: */s/ Schneur Zalman Kass*

SCHNEUR ZALMAN KASS



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